

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MAY 30, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**MOLINERO, et al. v. PINA MARTINEZ, et al.
Case No. CU23-03622**

Motion for Summary Judgment, or in the Alternative, Summary Adjudication of
Issues filed by Defendant Maguire

TENTATIVE RULING

The motion for summary judgment is denied.

The motion for summary adjudication of the first cause of action for a motor vehicle accident is granted. Defendant has established that he was not the owner or operator of the vehicle that struck plaintiffs' daughter, and plaintiffs do not dispute this. Therefore, defendant is entitled to summary adjudication of this cause of action. (Defendant's Separate Statement of Undisputed Material Facts, No. 19).

The motion for summary adjudication of the second cause of action for premises liability and the third cause of action for negligence is denied. There are triable issues of material fact as to all the elements of these causes of action, namely, duty, breach of duty, and causation. There is a triable issue of material fact as to whether the accident was reasonably foreseeable, given the location of the fire lane next to the pedestrian walkway. Therefore, there is a triable issue of fact as to whether, as the owner of the property, defendant had a duty to take steps to make this situation safer. There is also a triable issue of material fact as to whether defendant breached his duty to take steps to address the situation, whether it be the installation of a raised curb or barriers or stricter enforcement of the laws prohibiting parking in the fire lane. Finally, there is a triable issue of material fact as to whether the condition of the walkway and fire lane

was a substantial factor in causing the accident of plaintiffs' daughter. The court finds evidence in support for its conclusions in Plaintiffs' Response to Defendant's Separate Statement of Undisputed Material Facts, Plaintiffs' Additional Material Fact Nos. 2, 3, 4, 5, 6, 8, 9, 10, 12, 14, 16, 17, 18, 23, 24, 25, 26, 28, 29, 44, and 45, and the evidence cited therein.

As to defendant's request for judicial notice, the court takes judicial notice of the complaint, the court document regarding the conviction of defendant Pina Martinez, and the traffic collision report, although the court does not take judicial notice of the statements contained in the traffic collision report as they are hearsay. The court also does not take judicial notice of the alleged fact that the accident was not reasonably foreseeable; this is a question for the jury.

SOLANO COUNTY v. BORCHARD, ET AL.
Case No. CU25-01336

Motion for Prejudgment Possession

TENTATIVE RULING

Plaintiff's unopposed motion for prejudgment possession is granted. Plaintiff has demonstrated its right to take the property by eminent domain, having adopted a resolution of necessity that conclusively establishes the conditions precedent to exercise the power. (Code Civ. Proc. § 1245.250(a).) Plaintiff has deposited the probable amount of compensation supported by the appraisal of a qualified expert. (Code Civ. Proc. § 1255.010.)

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